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Equity Incentive Plan

Goemon Global Finance, LLC — Unit Option & Profits Interest Plan

GOEMON GLOBAL FINANCE · CONFIDENTIAL — FOUNDER · JUNE 30, 2026

Strategic guidance only — not legal, financial, tax, or investment advice.
Securities, money-transmission, and corporate-formation decisions must be reviewed by licensed counsel and a CPA before you act. Sections flagged “ see counsel” are where this matters most.

Contents

1. Why this is a "Units & Profits Interest" Plan, not a stock option plan
2. ARTICLE 1 — PURPOSE AND DEFINITIONS
3. ARTICLE 2 — ADMINISTRATION
4. ARTICLE 3 — UNITS SUBJECT TO THE PLAN
5. ARTICLE 4 — ELIGIBILITY
6. ARTICLE 5 — PROFITS INTERESTS (primary instrument)
7. ARTICLE 6 — UNIT OPTIONS
8. ARTICLE 7 — VESTING, FORFEITURE, AND REPURCHASE
9. ARTICLE 8 — TRANSFER RESTRICTIONS AND JOINDER
10. ARTICLE 9 — VALUATION (FMV / 409A)
11. ARTICLE 10 — SECURITIES-LAW POSTURE
12. ARTICLE 11 — AMENDMENT, SUSPENSION, AND TERM
13. ARTICLE 12 — CONVERSION TO A DELAWARE C-CORPORATION
14. ARTICLE 13 — GENERAL
15. EXHIBIT A — Form of Profits Interest Award Agreement
16. EXHIBIT B — Form of Unit Option Agreement
17. EXHIBIT C — § 83(b) Election (template)

Equity Incentive Plan — Goemon Global Finance, LLC

Unit Option & Profits Interest Plan

Counsel must review and customize before granting any award. This is an attorney-grade **scaffold**, not filed legal advice. Bracketed `[•]` fields must be completed; items tagged **see counsel** require a Wyoming-licensed attorney and/or CPA before reliance. Granting equity implicates securities, tax (IRC §§ 83, 409A; Rev. Procs. 93-27 & 2001-43), and valuation rules. Do not grant until counsel and a CPA sign off.

Companion documents: `OPERATING-AGREEMENT.md` (Article VIII incorporates this Plan), `INITIAL-RESOLUTIONS.md` (Resolution 7 adopts it); strategy `docs/business/CORPORATE-STRUCTURE.md` §4.

1 Why this is a "Units & Profits Interest" Plan, not a stock option plan

Goemon Global Finance, LLC is a **Wyoming LLC**, not a corporation. An LLC has no "stock," "shares," or "shareholders"; its equity is **Units** held by **Members**. The functional equivalent of a corporate stock-and-options plan in an LLC is delivered through two instruments — **profits interests** (the primary, tax-efficient LLC incentive) and **Unit options** — both reserved against the Company's **9% incentive Pool**. On the Company's planned conversion to a Delaware C-corporation (`CORPORATE-STRUCTURE.md` §2.2), outstanding awards convert into the corporate equivalents (ISOs/NSOs/restricted stock) as set out in § 12. This Plan is therefore designed to *be* the stock-and-options program, in the form the entity requires today and convertible to the form investors expect tomorrow.

2 ARTICLE 1 — PURPOSE AND DEFINITIONS

1.1 Purpose. This Equity Incentive Plan (the "**Plan**") promotes the long-term success of Goemon Global Finance, LLC (the "**Company**") by enabling it to attract, retain, and motivate **employees, officers, advisors, contractors, and venture/strategic partners** through awards of equity participation in the Company.

1.2 Definitions. Capitalized terms not defined here have the meaning given in the Operating Agreement. Key terms:

- **"Award"** — a Profits Interest or a Unit Option granted under this Plan.
 - **"Participant"** — a person who holds an Award.
 - **"Operating Agreement"** — the Company's Operating Agreement, as amended.
 - **"Pool"** — the Units reserved under § 3.1.
 - **"Fair Market Value" / "FMV"** — the value of a Unit determined in good faith by the Administrator, supported by a valuation where required (§ 9). [⌘]
 - **"Threshold Amount" (hurdle)** — for a Profits Interest, the Company's aggregate liquidation value on the grant date, such that the Profits Interest shares only in value above that amount (Rev. Proc. 93-27).
 - **"Service"** — service to the Company as an employee, officer, advisor, contractor, or partner; **"Termination of Service"** is the cessation thereof.
 - **"Change of Control"** — [**• define: a sale of all/substantially all assets, a merger after which the pre-transaction Members hold <50%, or the Delaware C-corp conversion if the Administrator so designates**]. [⌘]
-

3 ARTICLE 2 — ADMINISTRATION

2.1 Administrator. The Plan is administered by the **Manager** (Chad Cromwell), or a committee the Manager appoints (the **"Administrator"**). Grants of Awards from the Pool are delegated to the Manager under Operating Agreement § 8.2 and **do not require further Member consent** so long as aggregate Awards do not exceed the Pool.

2.2 Authority. The Administrator may: select Participants; determine the type, size, Threshold Amount or exercise price, vesting, and terms of Awards; prescribe award-agreement forms; interpret the Plan; and adopt rules. Determinations are final and binding, subject to the Operating Agreement and applicable law.

2.3 Reserved Matters. Increasing the Pool above 900,000 Units (9%), or amending the Plan in a manner that requires Member approval under the Operating Agreement, remains a **Reserved Matter** requiring unanimous Member consent (Operating Agreement § 5.4).

4 ARTICLE 3 — UNITS SUBJECT TO THE PLAN

3.1 Reserved Pool. The maximum number of Units issuable under the Plan is **900,000 Units** (9% of the Company's 10,000,000 authorized Units), as reserved in the Operating Agreement and the Initial Resolutions.

3.2 Replenishment. Units subject to Awards that are forfeited, repurchased, expire, or are settled without issuance **return to the Pool** and are again available for grant.

3.3 No fractional Units. The Administrator may round down or settle fractions in cash. ☞

3.4 Adjustments. On a Unit split, combination, recapitalization, or similar event, the Administrator shall equitably adjust the Pool, outstanding Awards, Threshold Amounts, and exercise prices.

5 ARTICLE 4 — ELIGIBILITY

Awards may be granted to any **employee, officer, advisor, consultant, contractor, or venture/strategic partner** of the Company whose participation the Administrator determines will benefit the Company. The founders' fully vested Units are **not** granted under this Plan (they are issued directly under the Operating Agreement); this Plan governs incentive Awards from the Pool.

6 ARTICLE 5 — PROFITS INTERESTS (primary instrument)

5.1 Grant. The Administrator may grant **Profits Interests** entitling the Participant to share in the Company's **future profits and appreciation above the Threshold Amount** fixed on the grant date, and to receive Units representing that interest, subject to vesting.

5.2 Intended tax treatment. Profits Interests are intended to qualify as such under **Rev. Proc. 93-27** and **Rev. Proc. 2001-43**, so that the grant and vesting are **not taxable events** to the Participant if requirements are met (including that the interest is not substantially certain and predictable income, is held ≥ 2 years, and the Company does not deduct the value). The Participant becomes a **partner for tax purposes** and receives a Schedule K-1. ☞ / **CPA — strictly observe the Threshold Amount and holding requirements.**

5.3 § 83(b) election. Because Profits Interests typically vest over time, each Participant should file a protective § 83(b) election within 30 days of grant. The Company shall provide a form (Exhibit C); the 30-day deadline is jurisdictional and cannot be cured if missed. The Company does not provide tax advice; Participants should consult their own advisor. ☞

5.4 Capital account / distributions. A Profits Interest has an initial capital account of \$0 and shares only in post-grant appreciation and profits above the Threshold Amount, per Operating Agreement Article IV and Schedule B.

5.5 Voting. Profits Interests are **non-voting** unless an award agreement expressly grants voting Units. Participants execute a **Joinder** (Operating Agreement Exhibit A) and hold subject to all transfer, ROFR, and repurchase terms.

7 ARTICLE 6 — UNIT OPTIONS

6.1 Grant. The Administrator may grant **Unit Options** — the right to acquire Units at a fixed exercise price.

6.2 Exercise price. The exercise price per Unit shall be **no less than the FMV** of a Unit on the grant date (to avoid IRC § 409A discount-option problems). ☞ / **valuation (§ 9).**

6.3 Term. No Option is exercisable more than **[• 10]** years after grant; the Administrator may set a shorter term.

6.4 Vesting and exercise. Options vest per § 7 and are exercised by notice and payment of the exercise price (cash or, if permitted, net/cashless settlement). On exercise, the Participant receives Units, executes a **Joinder**, and holds subject to this Plan and the Operating Agreement.

6.5 Tax. Options are generally **non-qualified** for an LLC (no ISO treatment is available for LLC interests). The Participant recognizes ordinary income on exercise equal to the spread, and the holding may create partner-for-tax status. ☞ / **CPA.**

8 ARTICLE 7 — VESTING, FORFEITURE, AND REPURCHASE

7.1 Default vesting. Unless an award agreement provides otherwise, Awards vest over **four (4) years** with a **one (1)-year cliff** (25% on the first anniversary, then **[• monthly /**

quarterly] over the remaining 36 months), contingent on continued Service.

7.2 Acceleration. The Administrator may provide for acceleration on a **Change of Control** (single- or double-trigger as specified in the award agreement). ☞

7.3 Termination of Service. On Termination of Service:

- **Unvested Awards** are **forfeited** (Profits Interests are cancelled; unvested Options lapse).
- **Vested Units** acquired under the Plan are subject to the Company's (then the Members') **repurchase right** at the lesser of cost or FMV for a termination for **cause**, and at **FMV** otherwise, exercisable within [• 90] days, per the Operating Agreement. ☞
- **Vested Options** must be exercised within [• 90] days of termination (longer for death or disability) or they lapse.

7.4 Clawback. Awards are subject to any clawback the Administrator adopts for fraud or material restatement. ☞

9 ARTICLE 8 — TRANSFER RESTRICTIONS AND JOINDER

8.1 Non-transferable. Awards may not be transferred except by will or intestacy, or as the Administrator permits, and remain subject to the Operating Agreement's transfer restrictions, **Right of First Refusal**, tag-/drag-along, and consent requirements (Operating Agreement Article VII).

8.2 Mandatory Joinder. No Units are issued under any Award until the Participant executes a **Joinder** to the Operating Agreement (Exhibit A thereto), binding the Participant to this Agreement.

8.3 Non-voting default. Plan Units are **non-voting** unless expressly designated otherwise.

10 ARTICLE 9 — VALUATION (FMV / 409A)

9.1 Good-faith valuation. FMV and Threshold Amounts are determined by the Administrator in good faith, supported, where appropriate, by an **independent valuation** (an LLC analogue of a **409A valuation**) refreshed at least every 12 months or upon a material event. Options priced at or above a reasonable, contemporaneously documented FMV obtain

the § 409A presumption of reasonableness. ✎ — **engage a valuation provider before pricing Options or setting hurdles.**

11 ARTICLE 10 — SECURITIES-LAW POSTURE

10.1 Exemption. Awards are intended to be issued in **private transactions exempt** from registration under the Securities Act of 1933 and applicable state law, in reliance on **Rule 701** (compensatory benefit plans), **Section 4(a)(2) / Regulation D**, and comparable exemptions. The Company shall observe Rule 701 volume limits and disclosure thresholds. ✎

10.2 Investment representations. Each Participant makes customary investment representations (acquiring for own account, not for resale; access to information; ability to bear risk) in the award agreement.

10.3 Legends. Units and award agreements bear restrictive legends referencing the securities-law restrictions and the Operating Agreement's transfer terms.

10.4 No advice. The Company provides no securities, tax, or legal advice; Participants must consult their own advisors. This Plan is **not an offer** to sell securities.

12 ARTICLE 11 — AMENDMENT, SUSPENSION, AND TERM

11.1 Amendment. The Administrator may amend or suspend the Plan, except that any amendment requiring Member approval under the Operating Agreement (including increasing the Pool) is a **Reserved Matter** requiring unanimous Member consent. No amendment may materially impair an outstanding Award without the Participant's consent.

11.2 Term. The Plan is effective on its adoption date (`INITIAL-RESOLUTIONS.md`), Resolution 7) and continues for `[• 10]` years, unless earlier terminated; outstanding Awards survive termination per their terms.

13 ARTICLE 12 — CONVERSION TO A DELAWARE C-CORPORATION

12.1 Conversion. Upon the Company's conversion to a Delaware C-corporation (`CORPORATE-STRUCTURE.md` §2.2), **outstanding Awards convert** into economically equivalent corporate equity of the successor, on a **1:1** basis (or the conversion ratio applied to all Units), as follows, as determined by the Administrator with counsel:

- **Vested Profits Interests / Plan Units** → restricted stock or fully vested common stock of the successor, preserving the economic value above the Threshold Amount.
- **Unvested Awards** → restricted stock or options carrying the **same remaining vesting**.
- **Unit Options** → NSOs or, where eligible, ISOs of the successor with equivalent exercise price and term.

12.2 Cooperation. Each Participant agrees to execute the documents reasonably necessary to effect the conversion of their Awards, consistent with Operating Agreement § 7.6. **CPA — structure to be tax-efficient (often a § 351 / assets-up or statutory conversion).**

14 ARTICLE 13 — GENERAL

13.1 No Service rights. Nothing in the Plan confers a right to continued Service. **13.2 Governing law.** Wyoming, consistent with the Operating Agreement. **13.3 Tax withholding.** The Company may withhold taxes due on any Award event. **13.4 Unfunded.** The Plan is unfunded; Participants are general creditors as to any unissued amounts. **13.5 Conflicts.** In a conflict between this Plan and the Operating Agreement, the **Operating Agreement controls** except as to terms this Plan is expressly authorized to set.

15 EXHIBIT A — Form of Profits Interest Award Agreement

GOEMON GLOBAL FINANCE, LLC – PROFITS INTEREST AWARD AGREEMENT

Participant: [• name]
Grant date: [• date]
Number of Units: [•] Class [• Non-Voting] Units (Profits Interest)
Threshold Amount: \$[• Company liquidation value on grant date] (interest shares o
Vesting: 4-year, 1-year cliff (or: [• custom]); contingent on continued
§ 83(b): Participant SHOULD file within 30 days of grant (Exhibit C); de
Voting: Non-voting unless stated: [•]
Conditions: Execution of Joinder to the Operating Agreement; investment rep
subject to Plan, Operating Agreement, transfer restrictions, RO

Participant: _____ Company (by Manager): _____
Date: [•] Chad Cromwell, Manager – Date: [•]

16 EXHIBIT B — Form of Unit Option Agreement

GOEMON GLOBAL FINANCE, LLC – UNIT OPTION AGREEMENT

Optionee: [• name]
Grant date: [• date]
Units subject to Option: [•]
Exercise price/Unit: \$[• ≥ FMV on grant date]
Type: Non-qualified Unit Option
Term: [• 10] years from grant
Vesting: 4-year, 1-year cliff (or: [• custom]); contingent on continued
Exercise: Written notice + payment (cash / [• net exercise]); execution o
Conditions: Subject to Plan, Operating Agreement, transfer restrictions, RO

Optionee: _____ Company (by Manager): _____
Date: [•] Chad Cromwell, Manager – Date: [•]

17 EXHIBIT C — § 83(b) Election (template)

ELECTION UNDER SECTION 83(b) OF THE INTERNAL REVENUE CODE

The undersigned taxpayer elects, under IRC § 83(b) and Treas. Reg. § 1.83-2, to include gross income for the current taxable year the excess (if any) of the fair market value property described below over the amount paid for it.

1. Taxpayer: [• name], [• address], TIN [•]
2. Property: [•] Units (Profits Interest / restricted Units) of Goemon Global Finance, LLC, a Wyoming LLC.
3. Date of transfer: [• grant date] Taxable year: [•]
4. Restrictions: Subject to vesting and forfeiture on Termination of Service; the restrictions per the Operating Agreement.
5. FMV at transfer: \$[•] (for a properly structured Profits Interest, generally \$0 Threshold Amount).
6. Amount paid: \$[•]
7. The taxpayer has furnished a copy to the Company.

△ FILE WITH THE IRS WITHIN 30 DAYS OF THE GRANT DATE. Keep proof of timely mailing.
This is a template; consult a tax advisor. ☞

Signature: _____ Date: [•]

This Plan, together with the Operating Agreement and the Initial Resolutions, completes the founding governance set. It is the LLC-native expression of the Company's stock-and-options program, reserved against the 9% Pool and convertible to corporate equity at the Delaware C-corp step.